

CHAPTER 20.

An Act to make provision for the transfer of Property and other matters consequent upon the dissolution of Districts and Poor Law Unions or the addition of one Poor Law Union to another. . . [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1. The board of guardians of any poor law union, which has been dissolved or added to another poor law union, and the board of management, acting for any school district or asylum district which has been dissolved or the component parts of which have been formed into one poor law union, shall, by virtue of this Act, be dissolved, or, in the case of poor law unions or districts so dealt with before the passing of this Act, shall be deemed to have been so dissolved as from the date of such dissolution, addition or formation.

Dissolution of poor law authorities on dissolution of districts.

2.—(1) Where any board of guardians or board of management have been, or, by virtue of this Act, are to be deemed to have been, so dissolved, their property and liabilities shall vest in the successors of that board or shall be deemed to have so vested as from the date of the dissolution, and no deed, conveyance or other instrument and no authority of any court shall be, or shall be deemed to have been, requisite for the purpose.

Transfer of property of dissolved authority.

(2) Where at the date of any such dissolution any stock is standing in the books of any company in the name of the board of guardians or board of management, then, upon the request of the successors of that board and the production of a statutory declaration verifying the stock and the identity of the persons making the request, together with a certificate by the Local Government Board, verifying the succession, the company shall enter the stock as occasion requires in the names of the persons specified in that behalf in the statutory declaration, in like manner as if the stock had been transferred to them, and pay to them all dividends accrued and to accrue due thereon and do all things necessary for effecting the purposes of this section.

(3) The statutory declaration required for the purposes of this section may be made by the person specified in that behalf in the certificate of the Local Government Board.

3. The Local Government Board shall have, and shall be deemed to have had, power to revoke, extend or alter any order made by them, relating to the dissolution or alteration of poor law unions or school or asylum districts or to the continuance in office of the successors of the board concerned, and to make any such order without giving particulars in the order as to the special purposes for which the persons continued in office are to act, and

Power of Local Government Board to vary orders of dissolution, &c.

may by a general or a particular order make such provision as the Local Government Board think expedient for the regulation of the proceedings of any persons so continued in office, and for the authentication of any documents on their behalf by the signatures of any two or more of them, and as to the method in which any such persons may transfer any property vested in them, and otherwise for giving effect to the purposes of this Act, and any such order shall have effect as if enacted in this Act.

Interpretation.

4. In this Act—

“The successors of the board” means the persons or the survivors of the persons acting as members of the board at the time of the dissolution and any persons who may be added to or substituted for those persons by an order of the Local Government Board :

“Company” includes the Bank of England and any company or person keeping books in which stock is registered :

“Stock” includes any share, annuity or other security.

Short title and extent.

5.—(1) This Act shall not extend to Ireland.

(2) This Act may be cited as the Poor Law Authorities (Transfer of Property) Act, 1904.

CHAPTER 21.

An Act to enable the Treasury to borrow by means of Exchequer Bonds for purposes for which they are authorised to borrow by means of Terminable Annuities. [15th August 1904.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power of Treasury to borrow by means of Exchequer bonds as well as by means of terminable annuities.

1.—(1) The Treasury may, if they think fit, borrow, by means of the issue of Exchequer bonds, the whole or part of any sums which at the time of the passing of this Act they are authorised under any Act (in this Act referred to as the enabling Act) to borrow by means of terminable annuities, and may also so borrow any sums which are required for paying off any bonds so issued.

(2) Provision shall be made by the Treasury, out of moneys annually provided by Parliament for the services for which any loan is raised by means of Exchequer bonds under this Act, for the payment of the interest on the loan and also for the discharge of the loan within a period not exceeding the maximum period fixed for the terminable annuities under the enabling Act.

(3) The principal of and interest on any Exchequer bonds issued under this Act shall be charged on and payable out of the